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NEW CONTRIBUTIONS OF THE THESIS

Thesis topic: **Protecting intellectual property rights at the border through the control of counterfeit goods of intellectual property by Vietnam Customs**

Major: Civil Law and Civil Procedure

Code: 62 38 01 03

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Training place: Hanoi Law University

THE NEW CONTRIBUTIONS OF THE THESIS

In terms of general, the thesis is the first scientific works in Vietnam to conduct comprehensive and in depth research on the protection of intellectual property rights at the border through the control of counterfeit goods of intellectual property by Customs.

In terms of reasoning, the thesis has clarified the theoretical basis for the protection of intellectual property rights in general and the protection of intellectual property rights at the border in particular; clarified the content of concept of counterfeit goods of intellectual property, the criteria for identifying counterfeit goods of intellectual property, distinguishing it from goods infringing other intellectual property rights; the thesis is the first work to build a physical model theory of the protection of intellectual property rights at the border through the control of counterfeit goods of intellectual property by Customs. These are the core and important contents contributing to the improvement and deepen the scientific and legal theory of the protection of intellectual property rights and the protection of intellectual property rights at the border.

In term of legally and practically

The thesis is a systematic study of the provisions of Vietnamese law on the control of counterfeit goods of intellectual property at the border, thereby clarifying legal status, existing problems and shortcomings that need to be overcome and perfected.

The thesis has analyzed and evaluated the current Vietnamese legal regulations on control of counterfeit goods of intellectual property at the border compared with other international treaties as well as the laws of some countries, giving view and comments on the compatibility and effectiveness of legislation in this regard. By researching comprehensive legal status and practical application of the law, on the basis of reference and study referring to experiences of some countries, the thesis has orientation, recommendations for improving law and solutions to improve the effectiveness of control counterfeit goods of intellectual property of Vietnam Customs.

The solutions offered are scientific and highly feasible as the basis for Legislators and manager develop appropriate policies and laws to meet the requirements of actual needs in Vietnam./.

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